

GINSBURG, J., dissenting

pensation.” The United States ratified the ICCPR with the “understandin[g]” that Article 9(5) “require[s] the provision of effective and enforceable mechanisms by which a victim of an unlawful arrest or detention or a miscarriage of justice may seek and, where justified, obtain compensation from either the responsible individual or the appropriate governmental entity.” U. S. Reservations, Declarations, and Understandings, ICCPR, 138 Cong. Rec. 8071 (1992). See also 1676 U. N. T. S. 544 (entered into force Sept. 8, 1992). One fitting mechanism to obtain compensation is a *Bivens* action. See Senate Committee on Foreign Relations, ICCPR, S. Exec. Rep. No. 102–23, p. 15 (1992).

The Court also asserts, as cause for hesitation, “the risk of undermining border security.” *Ante*, at 108. But the Court speaks with generality of the national-security involvement of Border Patrol officers. It does not home in on how a *Bivens* suit for an unjustified killing would in fact undermine security at the border. *Abbasi* cautioned against invocations of national security of this very order: “[N]ational-security concerns must not become a talisman used to ward off inconvenient claims—a ‘label’ used to ‘cover a multitude of sins.’” 582 U. S., at 143 (quoting *Mitchell v. Forsyth*, 472 U. S. 511, 523 (1985)). Instructions regulating Border Patrol agents tell them to guard against deploying unjustified deadly force. See 8 CFR §287.8(a)(2)(ii). Given that instruction, I do not grasp how allowing a *Bivens* action here would intrude upon the political branches’ national-security prerogatives.

Congress, although well aware of the Court’s opinion in *Bivens*, see, e. g., S. Exec. Rep. No. 102–23, at 15, has not endeavored to dislodge the decision. The Court cites several statutes in support of the argument that affording a *Bivens* action to Hernández’s parents would be inconsistent with measures Congress has taken. None of the cited statutes should stand in plaintiffs’ way.

Section 1983 actions, the Court points out, are available only to “person[s] within the jurisdiction” of the United